

		to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (<i>DMS Services, LLC v. Superior Court</i> (2012) 205 Cal.App.4th at 1346, 1354.) Here, Plaintiff's claims against moving Defendant and Maruchan, Inc. are intertwined because Plaintiff alleges she was concurrently employed by both Defendants. Moreover, the language of the agreement encompasses Defendant's agents and affiliates. The case is STAYED pending arbitration. Arbitration Status Review set for 5/27/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
7	Diamond Peo, LLC vs. Kamran Staffing, Inc. 30-2022-01247086-CU-BC-CJC	Motion to Amend Judgment Plaintiff and Cross-Defendant Diamond PEO, LLC's motion for an order amending the judgment entered on September 5, 2024, to add Antonio Enciso, an individual, and Azul Staffing Group, LLC, a California limited liability company, as additional judgment debtors is DENIED. There is no evidence the proposed additional judgment debtors, Antonio Enciso and Azul Staffing Group, LLC, were served with the moving papers. Due process requires the proposed additional debtors be given notice and an opportunity to be heard. Clerk to give notice.
8	Chao vs. Chao 30-2024-01416045-CU-OR-CJC	Motion for Confirmation of Sale of Real Property Partition Referee Matthew L. Taylor's motion for confirmation of sale of real property is GRANTED. <u>Standard on Motion to Confirm Partition Sale</u> The purchaser, partition referee, or any party may move to confirm or set aside a partition sale. (Code Civ. Proc., § 873.720, subd. (a).) The moving party must give no less than 10 days' notice of motion to the purchaser and all other parties who have appeared in the action. (<i>Id.</i>, § 873.720, subd. (b)(1)-(2).) "At the hearing, the court shall examine the report and witnesses in relation to the report." (Code Civ. Proc., § 873.730, subd. (a).) "The court may confirm the sale notwithstanding a variance from the prescribed terms of sale if to do so will be beneficial to the parties and will not result in substantial prejudice to persons interested in the

sale.” (*Id.*, § 873.730, subd. (b).) On the other hand, “[t]he court may vacate the and direct that a new sale be made if it determines any of the following: (1) The proceedings were unfair or notice of sale was not properly given. If there is no finding at the hearing of unfairness or improper notice, the sale may thereafter not be attacked on such grounds. (2) The sale price is disproportionate to the value of the property. (3) It appears that a new sale will yield a sum that exceeds the sale price by at least 10 percent on the first then thousand dollars (\$10,000) and 5 percent on the amount in excess therefor, determined after a reasonable allowance for the expenses of a new sale.” (*Id.*, § 873.730, subd. (c)(1)-(3).)

“Upon confirmation of a sale, the court shall order the referee to execute a conveyance or other instrument of transfer, to collect the proceeds, take security, and perform other acts required to consummate the sale.” (Code Civ. Proc., § 873.750, subd. (a).)

Procedural Requirements

The Court finds Partition Referee Taylor has provided more than 10 days’ notice of the motion and complied with the relevant requirements of the interlocutory default judgment, including requirements relating to the retention of listing brokers, providing notice of sale, and seeking court confirmation of the proposed sale. (See ROA 78 [Proof of Serv. by Publication]; Mot. at 7:24-8:5; Taylor Decl. ¶¶ 3-4, Exs. 3-5.)

Proposed Sale

The Partition Referee moves to confirm the proposed sale of the property at 12635 Main Street, #201, Garden Grove, California, 92840, “as is, where is, and with all faults” to third parties Randall Tran and Shirley Liu for \$501,000.

Although the Partition Referee did not submit a separate report pursuant to section 873.710, the moving papers include all information required by the statute and show the proposed sale to be a fair, arms-length transaction. (See Mot. at 6:9-8:12; Taylor Decl. ¶¶ 3-7.)

The court record reflects no statutory justification to vacate the sale or direct a new sale. The terms of the proposed sale appear fair and there is no evidence the sale price is disproportionate to the value of the property. Further, there is no evidence a new sale will yield a sum exceeding the amounts set forth in section 873.730, subdivision (c)(3), to justify vacating the sale or directing a new sale.

		The Partition Referee is ORDERED to submit and serve the proposed final distribution order upon completion of sale of pursuant to Paragraph 9 of the Interlocutory Default Judgment. Partition Referee to give notice.
9	Ty Matthew Maynarich, co-trustee of the 2721 Via Montecito Trust dated March 6, 2012, vs. Melissa Ryan Harris, co-trustee of the 2721 Via Montecito Trust Dated March 6, 2012 30-2025-01528963-CU-OR-CJC	Motion for Interlocutory Judgment or Partition and Appointment of Referee Off calendar pursuant to stipulation.
10	Paz vs. Clarke Lew Medical Corp. 30-2025-01507092-CU-WT-CJC	Demurrer to Complaint Defendant Clarke Lew Medical Corp.'s demurrer to Plaintiff Mireya Paz's Complaint is CONTINUED to 6/26/2026. No meet and confer took place because Plaintiff refused to engage in the meet and confer process. (Turner Decl., ¶ 10, Ex. D.) Plaintiff's refusal to engage in the meet and confer process was improper. The Court ORDERS the parties to meaningfully meet and confer <i>in person or by telephone or teleconference</i> concerning the issues raised in the demurrer with an eye toward reducing the number of issues or eliminating the need for a demurrer. Defendant is ORDERED to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will assume the issues have been resolved and take the demurrer off calendar. Moving Defendant to give notice.